

25LBCV02566 25LBCV02566

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: MOTION FOR RECONSIDERATION

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Case Number: 25LBCV02566 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - SOUTH DISTRICT

FERNANDO
HERRERA OVANDO,

Plaintiff(s),

vs.

LONG BEACH AUDIO SHOP, ET AL.,

Defendant(s).

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CASE NO: 25LBCV02566

[TENTATIVE] ORDER RE: MOTION
FOR RECONSIDERATION

Dept. S27

8:30 a.m.

August 4, 2026

Moving Party: Plaintiff, Fernando Herrera
Ovando

Opposing Party: Defendants, Long Beach Audio Shop, et
al.

Notice: OK

1.

Background Facts

Plaintiff, Fernando Herrera Ovando filed this action against
Defendants, Long Beach Audio Shop, Efren Garcia, and Susana Garcia for breach
of contract and negligence arising out of the destruction of Plaintiff's
automobile in a fire.

2.

2/03/26 Hearing on Motion to Strike

On 2/03/26, the Court heard and granted Defendants' unopposed motion to strike the punitive damages allegations from the complaint. The Court found the complaint did not rise to the level of malice, fraud, or oppression, and indicated a belief that Plaintiff conceded the merits of the motion in light of the lack of opposition. The motion was granted without leave to amend.

3.

Motion for Reconsideration

a.

Law

Governing Reconsideration

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier.

Gilbert v. AC Transit (1995) 32 Cal.App.4th 1494, 1500. The burden under §1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.

A party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence. *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690. A motion for reconsideration is properly denied where based on evidence that could have been presented in connection with the original motion. *Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1460.

Ruling on a motion for reconsideration is a two-step process.

The Court must first determine if there are new or different facts, circumstances, of law that support reconsidering the prior decision. Once the Court finds such facts, circumstances, or law exist, the Court then revisits the prior decision and

decides whether or not to change the decision.
Corns v. Miller (1986) 181 Cal.App.3d 195, 202.

b. New
or Different Facts, Circumstances, or Law

The threshold issue on this motion is whether Plaintiff presents new or different facts, circumstances, or law that could not have been presented in connection with the original motion to strike.

Plaintiff supports the motion with his own declaration, wherein he avers that he attempted to obtain information from Samsung but the requests went unfulfilled for “an extended period” and he received responsive information “recently.” He declares an email from EV

West was not available at the time of the original hearing but is now available. He declares creating a timeline took effort and analysis of documents that were not organized at the time of the original hearing. He declares he could not obtain physical evidence of unopened safety equipment until he learned of the industry standards from EV West.

With respect to the timeline, all dates were in the exclusive knowledge of Plaintiff, and any failure to create the timeline was a result of Plaintiff’s choice not to do so, not any “new or different” facts or circumstances. Plaintiff mentions an email from EV West that was “not available” at the time of the original hearing, but does not attach the email or provide any specific information concerning when he contacted EV West, how long EV West took to respond, when the email from EV West was sent, etc. With respect to Samsung, Plaintiff uses the word “recently,” but does not clarify whether this was before or after his opposition to the motion to strike was due.

c.
Merits
of Motion

For purposes of this ruling, the Court will find that Plaintiff made an adequate showing of new or different facts or circumstances, despite the fact that, for the reasons detailed above, the showing is quite weak. The Court must then move on to the second prong of the inquiry, which is whether the original ruling should stand or be

altered.

Defendants argue a motion to strike punitive damages challenges only the face of the pleading, and therefore nothing stated by Plaintiff could possibly alter the outcome of the ruling.

Clearly this is true with respect to the portion of the ruling granting the motion to strike. It is not, however, true with respect to the portion of the ruling denying leave to amend. The Court routinely considers declarations and evidence when determining whether to grant leave to amend.

Plaintiff has not provided documentary evidence with his motion, and therefore the Court can only rely on Plaintiff's declaration concerning what the documentary evidence shows. The crux of the motion and Plaintiff's declaration in support of the motion is that Defendants disregarded industry standards and battery safety requirements when repairing Plaintiff's camper, and their decisions in this regard caused the fire that forms the basis of the lawsuit.

Plaintiff also declares that certain component parts that were necessary to the proper repair of his camper were found, unopened, in his van at the time of the fire, which confirms Defendants' failure to repair the camper in a safe manner.

The Court finds all of the above is evidence of negligence, but not of malice, fraud, or oppression, as defined by Civil Code §3294 and relevant case law. Plaintiff has not provided any evidence of fraud or oppression. "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." §3294(c)(1), *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.

Absent an intent to injure the plaintiff, the conduct must be "despicable," which is defined as "base, vile, or contemptible." *Id.* at 725.

Clearly various aspects of the declaration support the conclusion that Defendants acted with conscious disregard of Plaintiff's safety. There is, however, nothing in Plaintiff's declaration that supports a finding that Defendants acted in a manner that was despicable (base, vile, or contemptible), as opposed to merely negligent.

d.

Conclusion

Thus, even if the Court were to find new or different facts exist such that the ruling should be reconsidered, the Court would reaffirm its earlier ruling granting the motion to strike without leave to amend.

e. Notice

Defendants are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.

Dated this 4th
day of July, 2026

Hon.
Mark Kim

Judge
of the Superior Court